



POLICE DEPARTMENT

November 18, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202405077 (Incident Date: May 21, 2024) regarding Police Officer Rodolfo Viveros, Tax No. 976899 (PODS Case No. C-035386)

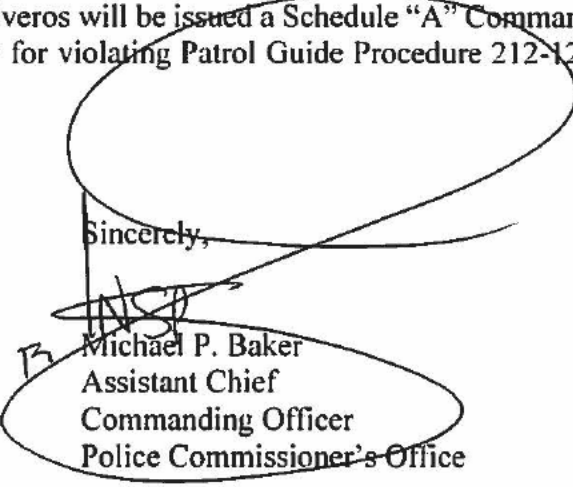
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Rodolfo Viveros and has determined that no disciplinary action is warranted in connection with the allegation regarding discourtesy.

In this matter, it has been determined Police Officer Viveros' action of pushing an individual's arm away from his face was reasonable and justified under the circumstances. CCRB determined that Police Officer Viveros was justified in pushing the individual's arm away because body worn camera footage captured the individual bringing his cell phone, with active flashlight, inches from Police Officer Viveros' face, which created a safety concern (Police Officer Viveros testified that he was blinded by the cell phone's bright light). Based on this same reasoning, the Police Commissioner has determined that Police Officer Vivero's actions were not discourteous.

Therefore, the Police Commissioner directs that no disciplinary action be imposed for the alleged violation of Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department). However, Police Officer Viveros will be issued a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for violating Patrol Guide Procedure 212-123 (Use of Body-Worn Cameras).

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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